A Framework for Mainstreaming Shari'ah in the Legislation of the Bangsamoro Autonomous Region in Muslim Mindanao

Executive Summary

The establishment of the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) through Republic Act No. 11054, the Bangsamoro Organic Law (BOL), represents a landmark achievement in the Philippine peace process and a unique opportunity to construct a modern, pluralistic, and effective system of regional governance. Central to this endeavor is the mandate to create a legal and justice system that is "reflective of their system of life as prescribed by their faith." This report provides a comprehensive analysis and a detailed framework for the systematic legislation and mainstreaming of Shari'ah within the BARMM, grounded in the legal authority of the BOL and informed by international best practices in Islamic governance.

The analysis finds that the BOL establishes a sophisticated model of "nested sovereignty," granting the Bangsamoro Parliament substantive autonomy to legislate on a broad range of Shari'ah matters while embedding the entire judicial apparatus within the Philippine national system under the supervision of the Supreme Court. This constitutional arrangement necessitates a legislative approach that is both authentically Islamic and constitutionally sound. An examination of the current legislative landscape reveals a deliberate and phased strategy by the Bangsamoro Transition Authority (BTA), prioritizing foundational administrative codes before advancing a "soft" mainstreaming of Shari'ah through explicitly compliant bills in finance, social welfare, and institutional support for religious bodies.

To build upon this foundation, this report proposes a multi-pronged strategic framework. The cornerstone of this framework is the adoption of *Maqasid al-Shari'ah* (the higher objectives of Islamic law) as the guiding philosophy for all public policy and legislation. This purpose-driven approach, focused on protecting faith, life, intellect, lineage, and property, provides a rational and universally accessible basis for governance that promotes public welfare (*maslaha*) and is compatible with the legal pluralism required by the BOL.

To operationalize this philosophy, the report recommends the creation of new institutional mechanisms adapted from proven models in the global Islamic finance industry. Key among these is the establishment of a **Shari'ah Legislative Review Board (SLRB)**, an independent body of juristic and legal experts tasked with reviewing all bills for Shari'ah compliance before enactment. This is complemented by a proposal for a **Shari'ah Auditor-General** to ensure the compliant implementation of laws and programs.

Furthermore, the report provides a model for the codification of penal provisions for minor offenses based on the Islamic legal concept of *ta'zir*, as explicitly authorized by the BOL. This model is rooted in principles of restorative justice (*islah*) and emphasizes community service and rehabilitation over punitive measures. To ensure humane and effective enforcement, the framework proposes a civilian **Bangsamoro Community Values Commission (BCVC)**, focused on education and mediation, coupled with a robust citizen oversight board to guarantee accountability and protect human rights.

Finally, the report outlines a strategic roadmap for implementation, including legislative priorities, capacity-building programs for all branches of the Bangsamoro government, and a plan for constructive engagement with the national judiciary. By adopting this integrated framework, the BARMM can fulfill its historic mandate to build a just, progressive, and balanced society that honors its unique identity while serving as a model of effective autonomous governance for the entire nation.

Introduction: Charting a Path for Shari'ah in a Modern Autonomous Region

The inauguration of the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) in 2019 marked a pivotal moment in the legal and political history of the Philippines. It was the culmination of a decades-long peace process, representing a profound commitment to rectify historical injustices and address the legitimate grievances of the Bangsamoro people.[1] The establishment of this new political entity is not merely an administrative reorganization; it is an opportunity to build a system of governance and law from the ground up—one that is both authentically Bangsamoro and functionally modern, capable of delivering enduring peace and sustainable development.[4]

At the heart of this historic enterprise lies a central challenge and a profound opportunity: the mainstreaming of Shari'ah into the legislative and administrative fabric of the autonomous region. Shari'ah, for Muslims, is not merely a set of religious rituals but a comprehensive "system of life" that informs governance, justice, culture, and social relations.[1] The Bangsamoro Organic Law (BOL) explicitly recognizes this, mandating a governance framework that is "reflective of their system of life as prescribed by their faith, in harmony with their customary laws, cultures and traditions".[1] This presents the critical task of translating the principles of a divine legal tradition into positive law within the constitutional architecture of a secular, democratic nation-state.

This endeavor requires navigating a complex legal and political terrain. The framework must be robust enough to give meaningful expression to the Bangsamoro identity and aspirations for self-governance, yet flexible enough to operate within the bounds of the Philippine

Constitution and its commitment to national sovereignty and territorial integrity.[6] It must deliver a justice system that is effective and credible for the Muslim majority while scrupulously protecting the rights and respecting the freedom of choice of all the region's inhabitants, including non-Moro Indigenous Peoples and Christian settler communities.[8]

This report provides a detailed analysis and a comprehensive, actionable framework to guide BARMM policymakers and legislators in this vital task. It is structured to provide a logical progression from legal foundation to practical implementation. Part I conducts a meticulous legal analysis of the BOL, establishing the constitutional mandate and defining the precise scope of BARMM's authority to legislate on Shari'ah. Part II assesses the current legislative and judicial landscape, examining the laws, bills, and resolutions produced by the Bangsamoro Parliament to identify emerging patterns and gaps in the integration of Shari'ah. Building on this analysis, Part III proposes a comprehensive framework for mainstreaming Shari'ah, detailing specific institutional mechanisms, legislative processes, and governance models. Finally, Part IV presents a strategic roadmap with concrete recommendations for legislation, capacity building, and inter-governmental engagement to turn this framework into a reality.

Part I: The Constitutional and Legal Mandate for Shari'ah in BARMM

The authority of the Bangsamoro Parliament to legislate on matters of Shari'ah is not an inherent power but one derived from and defined by national law. A thorough understanding of this legal foundation is therefore the indispensable starting point for any framework on Shari'ah mainstreaming. The Bangsamoro Organic Law (BOL) serves as the primary legal instrument that delineates the scope, nature, and limits of this authority, creating a unique constitutional space for the development of an Islamic legal subsystem within the broader Philippine legal order.

1.1 The Bangsamoro Organic Law as a Social Compact

The BOL is more than a statute; it is a social compact that translates the aspirations of a negotiated peace settlement into a legal charter for governance.[4] Its foundational intent, which must guide the interpretation of all its subsequent provisions, is articulated with clarity in its Preamble.

Analysis of the Preamble

The Preamble to the BOL serves as the "guiding light" for interpreting the intentions of its makers and the purpose of the law.[9] It begins by "Imploring the aid of Almighty God" and proceeds to recognize the "aspirations of the Bangsamoro people" to establish an "enduring peace on the basis of justice" and a "balanced society".[1] Crucially, it frames the entire project as being "reflective of their system of life as prescribed by their faith".[1] This language establishes a clear and unambiguous mandate to create a government and legal system where Islamic faith and its principles are not merely tolerated as a private matter, but are a legitimate source of public law, policy, and governance.[1] The Preamble situates this faith-based system within a framework of harmony with "customary laws, cultures and traditions," the "Constitution and the national sovereignty," and "accepted principles of human rights, liberty, justice, democracy, and the norms and standards of international law".[1] This intricate balancing act is the core theme of the BOL.

The Principle of "Common Good"

The aspirations articulated in the BOL's Preamble find resonance with the broader principle of the "common good" enshrined in the 1987 Philippine Constitution.[1] Legal scholars note that the constitutional shift from "general welfare" to "common good" was a deliberate choice to project a social order that enables every citizen to achieve their fullest development, rejecting a purely majoritarian calculus that could "do violence to human dignity".[1] In this context, the

BOL's mandate to implement a Shari'ah-informed legal system can be understood not as a deviation from national principles, but as a specific, regional expression of this pursuit of the common good. It is an acknowledgment that for the Bangsamoro people, achieving their fullest economic, political, cultural, and spiritual development is inextricably linked to a governance system that reflects their faith and identity.[1]

1.2 Navigating Asymmetrical Autonomy and National Sovereignty

The BOL creates a unique political and legal structure for the BARMM, granting it a degree of autonomy distinct from any other region or local government unit in the Philippines.

Defining the Asymmetrical Relationship

The relationship between the BARMM and the National Government is explicitly defined as "asymmetric," a term reflecting the recognition of the Bangsamoro identity and their aspiration for genuine self-governance.[4] This asymmetry means that the BARMM is not merely another local government unit; it possesses powers and competencies that other regions do not, particularly in the legislative and judicial spheres.[4] This special status is the legal basis for the Parliament's authority to enact laws based on a distinct legal tradition like Shari'ah.

Constitutional Constraints and Supremacy

This enhanced autonomy, however, operates within clear constitutional boundaries. The BOL repeatedly affirms that the BARMM is an "integral, indivisible, and inseparable part of the territory of the Republic of the Philippines" and that the Bangsamoro people "unequivocally owe allegiance and fidelity to the Republic of the Philippines".[6] The Supreme Court of the Philippines, in upholding the constitutionality of the BOL, underscored this point, ruling that the law is valid precisely because it does not create a separate state. The Court noted that matters of national defense, foreign policy, and citizenship remain with the national government, and that the BARMM's autonomy is limited to its internal governance.[7] This dynamic establishes a principle of "nested sovereignty": the BARMM exercises a form of regional, culturally-specific sovereignty that is nested within, and ultimately subordinate to, the national sovereignty of the Philippine Republic. Any framework for legislating Shari'ah must operate within this fundamental constraint, ensuring that all regional laws are consistent with the supreme law of the land, the Philippine Constitution.

1.3 Article X: The Architectural Blueprint for the Bangsamoro Justice System

Article X of the BOL provides the most detailed and explicit mandate for the creation of a Shari'ah-based legal system. It is the architectural blueprint from which all subsequent

legislation and institution-building must proceed.[6]

A System of Legal Pluralism

Section 1 of Article X establishes a justice system that is inherently pluralistic. It mandates that the administration of justice shall be in consonance with "the Constitution, Shari'ah, traditional or tribal laws, and other relevant laws".[6] This provision is critical, as it codifies a system of legal pluralism rather than a monolithic application of Shari'ah. It explicitly states that Shari'ah applies "exclusively to cases involving Muslims" (unless a non-Muslim voluntarily submits to its jurisdiction) and that traditional laws apply to disputes among Indigenous Peoples.[1] This design is a direct response to the diverse demography of the region and is a foundational safeguard for the rights of all inhabitants.

Sources and Legislative Powers

Sections 3 and 4 of Article X provide the substantive legal authority for the Bangsamoro Parliament. Section 3 identifies the principal sources of Shari'ah as the Qur'an and the Sunnah, and the secondary sources as *Ijma* (consensus) and *Qiyas* (analogy).[6] This provides the juristic foundation for legislative reasoning.
Section 4 grants the Parliament the power to "enact laws" on a broad spectrum of issues, including personal, family, and property law; commercial and other civil actions not covered by the existing Code of Muslim Personal Laws (Presidential Decree No. 1083); and, significantly, "criminal jurisdiction on minor offenses punishable by *arresto menor* or *ta'zir* which must be equivalent to *arresto menor* or fines commensurate to the offense".[6] This provision marks a fundamental shift. It moves beyond the mere application of a pre-existing national code and empowers the Parliament to engage in an active, modern legislative process of codifying Shari'ah for contemporary circumstances. This implies the necessity of developing an institutional capacity for what can be termed *legislative ijtihad*, or collective scholarly legal reasoning in a parliamentary context.

The Shari'ah Court Structure and its Integration

Article X meticulously details a three-tiered Shari'ah court system. Sections 5 and 6 define the exclusive original jurisdiction of the Shari'ah Circuit Courts and Shari'ah District Courts, respectively, covering a wide range of civil, family, and property disputes, as well as the newly authorized *ta'zir* offenses.[6] Section 7 establishes, for the first time, a Shari'ah High Court within the BARMM, which will serve as the appellate court for the Shari'ah District Courts.[6] Crucially, Section 2 declares that these Shari'ah courts "shall form part of the Philippine judicial system subject to the supervision of the Supreme Court".[12] This provision is the clearest expression of the "nested sovereignty" principle. While the substantive law applied in these courts may be derived from Shari'ah as legislated by the Parliament, the courts themselves are an integral part of the national judiciary. This integration is reinforced by

provisions requiring that Shari'ah judges meet specific qualifications, including being members of the Philippine Bar (Section 8), and granting the Supreme Court the power to appoint and discipline court personnel (Section 14) and to promulgate the Shari'ah Rules of Court (Section 11).[6] This structure ensures that while the content of the law is regional, its administration adheres to national standards of judicial process and is ultimately subject to the interpretive authority of the Supreme Court of the Philippines on questions of law.

Table 1: Jurisdictional Matrix of the BARMM Shari'ah Courts (Based on Article X, R.A. 11054)

Court Level	Exclusive Original Jurisdiction	Appellate Jurisdiction	Special Powers
Shari'ah Circuit Court	- Offenses under P.D. 1083. - Civil actions on marriage, divorce, dower (*mahr*), property disposition upon divorce, maintenance. - Disputes on communal properties. - *Ta'zir* offenses punishable by *arresto menor* or equivalent fine. - Civil actions (real property) with assessed value ≤ P400,000. - Other civil actions with claim ≤ P200,000.	N/A	N/A
Shari'ah District Court	- Cases on custody, guardianship, legitimacy, paternity under P.D. 1083. - Settlement of estate of	All cases decided by Shari'ah Circuit Courts within its territorial jurisdiction.	Petitions for *mandamus*, prohibition, injunction, *certiorari*, *habeas corpus* in aid of its

	deceased Muslims. - Petitions for declaration of absence/death, correction of Muslim Registries. - Actions from customary/Shari'ah contracts. - Petitions for constitution of family home, change of name, commitment of insane person. - Other personal/real actions not under Circuit Court jurisdiction. - Civil actions (real property) with assessed value > P400,000. - Other civil actions with claim > P200,000.		appellate jurisdiction.
Shari'ah High Court	- Actions for annulment of judgments of Shari'ah District Courts.	All cases under the jurisdiction of the Shari'ah District Courts.	Petitions for *mandamus*, prohibition, injunction, *certiorari*, *habeas corpus* in aid of its appellate jurisdiction.

Source: Synthesized from R.A. 11054, Article X, Sections 5, 6, and 7.[6]

This matrix provides an indispensable, at-a-glance reference for legislators, judges, and legal practitioners, clarifying the precise scope of each court's authority as expanded by the BOL. It translates the dense legal text into a clear, functional tool for the administration of justice, helping to prevent jurisdictional confusion as the new system is operationalized.

Part II: The Current Legislative and Judicial Landscape

Since its inauguration, the Bangsamoro Transition Authority (BTA) has been engaged in the foundational task of building the institutions of the new autonomous government. An analysis of its legislative output and agenda provides a clear, data-driven picture of how the mainstreaming of Shari'ah is unfolding in practice. This examination reveals a deliberate and strategic approach, prioritizing institutional stability and focusing on areas of "soft" Shari'ah application while the judicial infrastructure undergoes parallel reform.

2.1 Foundational Legislation: The Priority Codes

The BTA's initial legislative efforts focused on passing the priority codes mandated by the BOL, which serve as the administrative backbone of the Bangsamoro government.[13] While these codes are primarily administrative in nature, they contain important provisions that embed Islamic principles into the ethos and operation of the new bureaucracy.

Review of Enacted Codes

The Bangsamoro Parliament has successfully enacted several key codes, including the Bangsamoro Administrative Code (BAA No. 13), the Bangsamoro Education Code (BAA No. 18), and the Bangsamoro Civil Service Code (BAA No. 17).[13] These laws establish the basic structure of government, the educational system, and the rules governing public employment.

Identifying Embedded Islamic Principles

A closer analysis of these codes reveals a conscious effort to integrate Islamic values. The Bangsamoro Administrative Code, for instance, is explicitly grounded in the pursuit of "moral governance," a principle that calls for honesty, integrity, transparency, and accountability, and mandates taking "positive and effective measures against graft and corruption".[14] This aligns directly with Islamic ethical concepts of public office as a trust (*amanah*) and the leader's accountability (*hisab*) to both God and the people.[17] Similarly, the Bangsamoro Education Code establishes an integrated system that is "rooted in Bangsamoro history and culture" and explicitly aims to preserve and support the Madaris educational system alongside formal and non-formal learning.[15] It also mandates the institutionalization of peace education across all levels, reflecting a core Islamic value.[19] While the full text of the Civil Service Code requires further analysis, its purpose is to establish a public service that embodies these same principles of moral governance.[16] This pattern demonstrates a strategy of building the state apparatus on a foundation of Islamic ethical principles, even before codifying specific Shari'ah rules.

2.2 Legislative Intent: A Thematic Analysis of the Parliamentary Agenda

With the foundational codes in place, the BTA's legislative agenda has expanded to include bills that more directly and explicitly implement Shari'ah principles in specific sectors. This agenda reveals a clear legislative intent to move into specialized areas of Islamic law, particularly those related to finance, social welfare, and religious institutions.

Explicit Shari'ah Integration

Several bills filed in the Parliament contain explicit Shari'ah-compliant provisions, signaling a move from broad principles to specific applications.[20]

- **Parliamentary Bill No. 383** seeks to establish a "Bangsamoro Social Equity Investment Fund" and explicitly mandates "Shari'ah-compliant governance and investment management".[20]

- **Parliamentary Bill No. 379** provides for death benefits and disability assistance, with a provision for investing the fund to generate profits for "*Tabarru'*" payments, a term for donation or contribution specific to Islamic finance.[20]

- **Parliamentary Bill No. 387** proposes granting fiscal autonomy to several offices, including the "Bangsamoro Darul-Ifta' (BDI)," the region's Islamic religious authority responsible for issuing juristic opinions (*fatawa*).[20]

- **Parliamentary Bill No. 381** aims to institutionalize the empowerment and welfare of the *Ulama* (religious scholars), *Ustadhs* (teachers), and other faith-based counselors.[20]

These bills demonstrate a clear intent to build the institutional and financial infrastructure necessary for a functioning Islamic society, focusing on globally accepted and technically sophisticated domains of Shari'ah application.

Implicit Shari'ah Influence

Beyond these explicit bills, many other legislative initiatives reflect an implicit alignment with Islamic values and the cultural context of the BARMM.

- **Parliamentary Bill No. 389**, which prohibits single-use plastics, can be framed within the Islamic ethical principle of stewardship over the environment (*khalifa*).[20]

- **Parliamentary Bill No. 382**, establishing a Bangsamoro Women's Welfare Center, calls

for "culturally inclusive and gender-sensitive health services," which in the BARMM context necessitates adherence to Islamic guidelines on modesty and women's healthcare.[20]

- **Adopted Resolutions 540 and 541**, which urge food establishments to display "No Pork" or "With Pork" signage, directly address the practical application of Islamic dietary laws (*halal*) in the public sphere.[21]

This pattern of "soft" mainstreaming—integrating Shari'ah through economics, social policy, and public services—serves to build public acceptance and demonstrate the positive, developmental aspects of Islamic law. It represents a pragmatic strategy of achieving tangible benefits for the populace before potentially addressing more sensitive areas of "hard" codification related to personal conduct or penal statutes.

2.3 The Shari'ah Courts in Practice: Challenges and Opportunities

The effectiveness of any legislated Shari'ah provision ultimately depends on the capacity and credibility of the judicial system tasked with its interpretation and enforcement. The Shari'ah courts in the Philippines have historically faced significant challenges, but the establishment of the BARMM has created a new impetus for reform.

Existing Systemic Issues

Analyses of the Shari'ah court system established under Presidential Decree 1083 have consistently highlighted systemic weaknesses. The courts have been described as understaffed, underutilized, and chronically underfunded.[22] A key institutional gap has been the long-standing failure to organize the Shari'ah Appellate Court, forcing appeals to be heard in the national Court of Appeals by judges who may lack specialized knowledge of Islamic jurisprudence.[22] These issues have hampered the delivery of justice and eroded public trust in the system.[23]

The BOL as a Catalyst for Reform

The BOL, by creating the Shari'ah High Court and reaffirming the integration of the Shari'ah courts into the national judiciary, has acted as a powerful catalyst for reform. The Supreme Court of the Philippines has responded by making the strengthening of the Shari'ah justice system a key component of its Strategic Plan for Judicial Innovations (SPJI) 2022-2027.[25] This national-level commitment is evidenced by the holding of National Shari'ah Summits and the creation of a special committee to study the expansion of the courts' mandate to include commercial and criminal cases, as envisioned by the BOL.[25] The Bangsamoro Parliament has actively engaged in this process, passing

Resolution No. 458 to formally request the Supreme Court to facilitate the immediate organization of the Shari'ah High Court.[27] This demonstrates a positive and collaborative dynamic between the regional legislature and the national judiciary, which is essential for the successful implementation of the nested justice system.

Table 2: Shari'ah Compliance Analysis of Key BARMM Legislation and Bills

Legislation Title / Bill No.	Explicit Shari'ah Provision(s)	Implicit Alignment with Islamic Principles	Relevant *Maqasid al-Shari'ah* Served
BAA No. 13: Administrative Code	None explicit	"Moral Governance" (reflecting *amanah*, *'adl*, *hisab*)	Protection of Faith (*Hifz al-Din*), Protection of Property (*Hifz al-Mal*)
BAA No. 18: Education Code	Integration and support for Madaris education	Learner-centered, rights-based, peace education	Protection of Intellect (*Hifz al-'Aql*), Protection of Faith (*Hifz al-Din*)
PB No. 383: Social Equity Fund	"Shari'ah-compliant governance and investment management"	Promotion of social equity and inclusive economics	Protection of Property (*Hifz al-Mal*), Protection of Life (*Hifz al-Nafs*)
PB No. 387: Fiscal Autonomy	Grants fiscal autonomy to the "Bangsamoro Darul-Ifta'"	Strengthening of religious institutions	Protection of Faith (*Hifz al-Din*)
PB No. 381: Welfare of Ulama	Institutionalizes support for *Ulama* and faith-based counselors	Recognition of the role of religious leadership	Protection of Faith (*Hifz al-Din*)
PB No. 389: Plastics Prohibition	None explicit	Environmental stewardship (reflecting the concept of *khalifa*)	Protection of Life (*Hifz al-Nafs*)

Sources: Synthesized from.[13]

This table provides a substantive analysis of the BTA's legislative output, moving beyond a simple list of laws to create an evidence-based map of how Shari'ah is currently being integrated. It serves as a crucial diagnostic tool, highlighting both the deliberate strategy being employed and the areas where a more systematic framework, as proposed in the next section, is needed.

Part III: A Proposed Framework for Mainstreaming Shari'ah in BARMM Legislation

Building on the legal mandate of the BOL and the emerging legislative patterns, this section proposes a concrete, multi-component framework for systematically and coherently mainstreaming Shari'ah in the BARMM. This framework is designed to be both religiously authentic and procedurally robust, adapting best practices from global Islamic governance to the unique context of the Bangsamoro.

3.1 The Maqasid al-Shari'ah as a Guiding Philosophy for Public Policy

The first and most crucial step in mainstreaming Shari'ah is to adopt a guiding philosophy for legislation that is both profound in its Islamic grounding and accessible in its application to modern governance. The theory of *Maqasid al-Shari'ah* (the higher objectives or purposes of Islamic law) provides such a philosophy.

Defining the Maqasid

Maqasid al-Shari'ah refers to the ultimate objectives and underlying wisdom behind Islamic legal rulings.[28] Rather than focusing solely on the literal text of a rule, this approach seeks to understand the purpose for which the rule was revealed. Classical and modern scholars have identified five essential objectives (*al-kulliyyat al-khams* or *al-daruriyyat al-khams*) that the Shari'ah aims to protect and preserve [29]:

1. **Protection of Faith/Religion (*Hifz al-Din*)**: Ensuring the freedom to practice one's faith and protecting religious institutions and values.
2. **Protection of Life (*Hifz al-Nafs*)**: Safeguarding human life, health, and dignity.
3. **Protection of Intellect (*Hifz al-'Aql*)**: Promoting knowledge, education, and sound reasoning, and prohibiting that which clouds the mind.
4. **Protection of Lineage/Progeny (*Hifz al-Nasl*)**: Protecting the family unit, ensuring the well-being of future generations, and upholding social morality.
5. **Protection of Property/Wealth (*Hifz al-Mal*)**: Upholding property rights, ensuring fair economic transactions, and promoting the circulation of wealth.

Application in Modern Governance

Adopting a Maqasid-based approach fundamentally transforms the legislative process. It shifts the primary question for policymakers from "Is this specific rule found in a classical text?" to "Does this proposed law serve to protect and promote these essential objectives?".[31] This framework is inherently purpose-driven and oriented towards achieving public welfare or the common good (*maslaha*).[28]

This approach offers several distinct advantages for the BARMM. First, it provides a flexible and dynamic methodology for addressing contemporary problems not explicitly mentioned in the primary sources of Islamic law.[29] Second, it provides a rational and ethical language for policymaking that is universally understandable, facilitating dialogue with the national government, international partners, and non-Muslim constituents.[30] Third, by focusing on higher objectives like justice (*'adl*), equity, and human development, it inherently aligns Shari'ah-based governance with internationally recognized principles of good governance and human rights, helping to navigate the legal pluralism mandated by the BOL.[32]

3.2 Legislative Ijtihad: A Mechanism for Shari'ah Analysis of Bills

The process of drafting and enacting modern laws to address contemporary issues is a form of collective *ijtihad*—the exertion of intellectual effort to derive legal rulings.[34] For this process to be credible, consistent, and robust within the Bangsamoro Parliament, it cannot be ad hoc; it must be institutionalized.

Proposal for a Shari'ah Legislative Review Board (SLRB)

The central institutional recommendation of this report is the establishment of a **Shari'ah Legislative Review Board (SLRB)**. This body would be a permanent, independent, and expert committee serving the Parliament. Its structure and function can be directly adapted from the highly developed models of Shari'ah Supervisory Boards (SSBs) that are standard practice in the global Islamic finance industry.[36] The SLRB's primary mandate would be to conduct a formal Shari'ah compliance review of every bill before it receives final approval from the Parliament. It would issue a formal opinion on whether a bill is:

a) Compliant with the primary sources of Shari'ah.
b) Consistent with the Maqasid al-Shari'ah.
c) Constitutionally sound within the framework of the BOL and the Philippine Constitution.

This pre-enactment review process would ensure that all Bangsamoro Autonomy Acts are rigorously vetted for both religious and legal soundness, enhancing their quality and legitimacy.

A Shari'ah Compliance Checklist for Legislators

To standardize and guide the work of parliamentary committees and the SLRB, a formal **Shari'ah Compliance Checklist** should be developed. This practical tool, inspired by the detailed checklists used in Shari'ah audits in the financial sector, would ensure a comprehensive and consistent review process.[39] The checklist would prompt a systematic analysis of each bill, structured around key questions:

1. **Textual Compliance (*Nusus*)**: Does any provision in the bill directly contradict an explicit and unambiguous ruling in the Qur'an or the Sunnah?
2. **Maqasid Analysis**: Which of the five essential objectives (*Maqasid*) does the bill seek to protect or promote? Does it achieve this objective effectively?
3. **Public Interest (*Maslaha*)**: Does the bill genuinely serve the public interest and common good? Has a cost-benefit analysis been conducted to ensure that the potential benefits (*masalih*) outweigh any potential harms (*mafasid*)?
4. **Prohibition of Harm**: Does the bill avoid causing undue hardship or harm? Does it contain elements of excessive uncertainty (*gharar*), exploitation, or injustice?
5. **Consultation (*Shura*)**: Were the relevant stakeholders, experts, and affected communities adequately consulted during the drafting process, in line with the principle of *shura*?
6. **Constitutional and Legal Harmony**: Is the bill consistent with the powers granted under the BOL and the fundamental rights guaranteed by the Philippine Constitution?

3.3 Models for Shari'ah Governance and Institutional Oversight

An effective legislative process must be supported by a clear structure of juristic authority and a mechanism for post-enactment oversight.

Strengthening the Bangsamoro Darul-Ifta'

The **Bangsamoro Darul-Ifta'**, referenced in Parliamentary Bill No. 387, should be formally established and empowered as the premier juristic authority for the Bangsamoro Government.[20] Its role would be distinct from the SLRB. While the SLRB would focus on reviewing legislation, the Darul-Ifta' would serve as the primary advisory body to the Chief Minister, the Cabinet, and the Parliament on broad matters of Islamic law. It would be responsible for issuing authoritative religious opinions (*fatawa*) on complex legal, social, and ethical questions, providing the foundational juristic guidance upon which legislation can be built.

Establishing a Shari'ah Audit and Compliance Function

Drawing again from the robust governance frameworks of Islamic finance, the BARMM should establish a dedicated **Shari'ah audit function**, potentially under a new Office of the Shari'ah Auditor-General.[42] This body's mandate would be post-legislative. It would not review bills, but would conduct periodic audits of government ministries, agencies, and programs to assess whether their implementation of enacted laws remains compliant with Shari'ah principles in practice. This creates a crucial feedback loop, ensuring that the original Shari'ah-compliant intent of a law is not lost or distorted in its execution. The Shari'ah Auditor-General would submit its findings to the Parliament, promoting transparency and accountability across the government.

Table 3: Proposed Charter for a Shari'ah Legislative Review Board (SLRB)

Component	Description
Official Mandate	To provide independent, expert review of all bills before the Bangsamoro Parliament to ensure their compliance with the principles of Shari'ah, the *Maqasid al-Shari'ah*, the Bangsamoro Organic Law, and the Philippine Constitution.
Composition	7 members to ensure a diversity of expertise and prevent deadlock.
Qualifications of Members	- At least three (3) recognized *Ulama* with deep expertise in Islamic jurisprudence (*fiqh*) and its principles (*usul al-fiqh*), particularly in the area of public law and transactions (*mu'amalat*). - At least two (2) legal experts who are regular members of the Philippine Bar with demonstrated expertise in Philippine constitutional law and the BOL. - At least two (2) sectoral representatives with expertise in relevant fields such as economics, social development, or Indigenous Peoples' rights.
Appointment Process	Members to be nominated by a multi-sectoral search committee and appointed by the Chief Minister with the confirmation of the Parliament for a fixed, non-renewable term to ensure independence.
Key Functions	1. **Review**: Conduct a systematic review of all bills referred by parliamentary committees. 2. **Advise**: Provide formal advisory opinions and recommendations for amendments to ensure compliance. 3. **Publish**: Publish all its opinions to ensure transparency and contribute to the

	development of Bangsamoro jurisprudence.
Legislative Review Process	1. **Referral**: A bill is referred to the SLRB by a parliamentary committee after its first reading. 2. **Analysis**: The SLRB conducts its review using the standardized Shari'ah Compliance Checklist. 3. **Hearing**: The SLRB may conduct hearings with bill sponsors, experts, and stakeholders. 4. **Opinion**: The SLRB issues a formal written opinion classifying the bill as: (a) Compliant, (b) Compliant with recommended amendments, or (c) Non-compliant with detailed justification. 5. **Return to Parliament**: The opinion is transmitted back to the sponsoring committee, which must consider the SLRB's findings before the bill proceeds to its second reading.

This charter provides a practical blueprint for an essential piece of governance machinery, translating the abstract concept of legislative review into a concrete institutional design that the Parliament can legislate into existence.

3.4 Codifying Penal Provisions: A Framework for Ta'zir Offenses

The BOL grants the Parliament a specific but limited power to legislate on minor criminal offenses under the principle of *ta'zir*.[6] This power must be exercised with precision and a commitment to justice and human rights.

Defining the Scope of Ta'zir

Ta'zir refers to discretionary punishments for offenses that are not subject to the fixed penalties of *hudud* (crimes against God) or the retaliatory justice of *qisas* (crimes against persons).[45] These are typically offenses against public order or morality. The BOL strictly limits this power to acts punishable by *arresto menor* (imprisonment for 1 to 30 days) or a fine of equivalent severity.[6] This constitutional constraint means that any *ta'zir* code must focus only on genuinely minor infractions.

Model Penal Provisions with an Emphasis on Restorative Justice

A Bangsamoro *Ta'zir* Code should be drafted to address minor public order issues not adequately covered by the Philippine Revised Penal Code, thereby reflecting community values. Examples could include:

- **Public Nuisance**: Acts such as public intoxication that causes a disturbance (distinct from private consumption), or excessive noise.
- **Minor Environmental Infractions**: Public littering or improper waste disposal.
- **Petty Commercial Fraud**: Deceptive practices in local markets, such as giving short measure or weight.

Crucially, the penalties for these offenses should be framed within a **restorative justice** paradigm. This approach aligns deeply with the Islamic principles of reconciliation (*islah*), repentance (*tawbah*), and forgiveness (*'afw*).[47] Instead of defaulting to imprisonment, the code should prioritize penalties such as:

- **Community Service**: Requiring offenders to perform work that benefits the community they have harmed.
- **Reparative Fines**: Small fines paid directly to a community fund or used to rectify the harm caused.
- Mandatory Counseling or Education: Requiring offenders to attend programs on environmental responsibility or ethical business practices.
  This approach ensures that the law is corrective and rehabilitative, rather than purely punitive, reflecting the true spirit of ta'zir as a form of discipline and reform.46

3.5 Enforcement and Community Engagement

The enforcement of laws related to public values requires a specialized approach that prioritizes community engagement and education over coercion.

Proposal for a Bangsamoro Community Values Commission (BCVC)

To enforce the minor *ta'zir* offenses and promote public morality, this report proposes the creation of a **Bangsamoro Community Values Commission (BCVC)**. This body would be a civilian, non-police agency, drawing inspiration from the Islamic concept of *hisbah* (the duty to enjoin good and forbid wrong) but adapting it to a modern, rights-based context.[51] The BCVC's mandate would be strictly non-coercive and would focus on:

- **Public Education**: Conducting campaigns to promote civic virtues, environmental cleanliness, and ethical conduct.

- **Mediation and Counseling**: Intervening in minor public disputes and addressing breaches of conduct through dialogue and counseling, not arrests.

- **Advisory Role**: Providing feedback to local government units on community concerns related to public order.

This model professionalizes the concept of *hisbah*, ensuring its agents are trained in mediation and community engagement, thereby avoiding the potential for abuse associated with untrained religious police or vigilante groups.[51]

Citizen Oversight and Accountability

To ensure the BCVC operates within its mandate and respects the rights of all citizens, it must be subject to robust external oversight. A **Citizen Oversight Board**, modeled on civilian review boards for police departments, should be established.[53] This board would be composed of respected community leaders, human rights advocates, and representatives from various sectors, including Indigenous Peoples and settler communities. Its functions would include investigating public complaints against the BCVC, conducting regular audits of its activities, and publishing annual reports to ensure transparency and public accountability.

Part IV: Strategic Recommendations and Implementation Roadmap

The framework proposed in Part III requires a deliberate and sequenced implementation plan. This section translates the proposed models and mechanisms into a series of actionable recommendations for the Bangsamoro government, covering legislative priorities, capacity building, and inter-governmental engagement.

4.1 Legislative Priorities for Institutionalizing the Framework

The foundational elements of the Shari'ah governance framework must be established through clear and comprehensive legislation passed by the Bangsamoro Parliament.

Enacting a "Shari'ah Governance Act"

The Parliament should prioritize the drafting and enactment of a landmark "Shari'ah Governance Act." This single piece of legislation would serve as the charter for the new governance architecture, formally creating the key institutions proposed in this report. The Act would:

- Establish the **Shari'ah Legislative Review Board (SLRB)**, defining its mandate, composition, qualifications, appointment process, and operational procedures as detailed in Table 3.

- Create the **Office of the Shari'ah Auditor-General**, outlining its powers to conduct post-implementation audits of government programs for Shari'ah compliance and its reporting responsibilities to the Parliament.

- Formally recognize the **Bangsamoro Darul-Ifta'** as the principal juristic advisory body to all branches of the Bangsamoro government, clarifying its relationship with the SLRB and other government entities.

Drafting a "Bangsamoro Ta'zir Code for Minor Offenses"

A special parliamentary committee, comprising legal experts, Shari'ah scholars, and representatives from civil society, should be convened to draft the "Bangsamoro Ta'zir Code for Minor Offenses." This process must be guided by the principles outlined in Part III, ensuring that:

- The defined offenses are strictly limited to minor infractions against public order and morality.

- The prescribed penalties are equivalent to *arresto menor* as mandated by the BOL and are primarily restorative and rehabilitative in nature (e.g., community service, reparative fines).

- The drafting process involves extensive public consultation to ensure community acceptance and understanding.

Establishing the Community Values Commission

A separate bill should be enacted to create the **Bangsamoro Community Values Commission (BCVC)** and its independent **Citizen Oversight Board**. This legislation must clearly and unequivocally define the BCVC's mandate as educational and mediatory, explicitly prohibiting it from exercising police powers such as arrest, detention, or the use of force. The law must detail the structure and powers of the Citizen Oversight Board to ensure a robust mechanism for public accountability.

4.2 Capacity Building and Professional Development

The success of these new institutions and laws depends entirely on the knowledge and skills of the people who will run them. A comprehensive capacity-building program is therefore essential.

For Legislators and Staff

The Bangsamoro Parliament, in partnership with academic institutions like the University of the Philippines Institute of Islamic Studies or the Ateneo de Davao University, should develop and implement mandatory training modules for all Members of Parliament and their legislative staff.[54] These modules, drawing on existing courses on Islamic governance, should cover [56]:

- The principles and application of *Maqasid al-Shari'ah* in public policy.

- The methodology of the Shari'ah compliance review process.

- Comparative studies of Islamic constitutionalism and governance in other jurisdictions, such as Malaysia and Indonesia.[58]

For the Judiciary

The Bangsamoro government should actively collaborate with the Supreme Court of the Philippines and the Philippine Judicial Academy on developing specialized continuing legal education for Shari'ah court judges. This training should focus on:

- The expanded jurisdictions of the Shari'ah courts under the BOL.
- The application of the new *Ta'zir* Code.
- The principles and practices of restorative justice and alternative dispute resolution, as mandated by Article X, Section 20 of the BOL.[6]

For Civil Servants

The Bangsamoro Civil Service Commission should integrate a dedicated module on "Moral Governance and Islamic Ethics in Public Service" into its standard training and development curriculum for all government employees. This module should be based on the core Islamic principles of trust (*amanah*), justice (*'adl*), integrity, and accountability (*hisab*), translating these values into practical codes of conduct for public officials.[17]

4.3 Inter-governmental and Public Engagement

The successful integration of the Shari'ah system requires proactive collaboration with national bodies and transparent engagement with the public.

Engagement with the Supreme Court

The Office of the Chief Minister and the leadership of the Bangsamoro Parliament should pursue a formal and sustained dialogue with the Supreme Court of the Philippines to achieve two critical objectives:

1. The full and immediate organization of the **Shari'ah High Court**, as mandated by the BOL and formally requested in Parliament Resolution No. 458.[27] This is the final and most crucial piece of the judicial architecture.
2. The promulgation of new and updated **Shari'ah Rules of Court**, as provided for in Article X, Section 11 of the BOL.[6] These new rules are necessary to govern procedure in light of the expanded jurisdiction of the courts.

Public Consultation and Education

The Bangsamoro government should launch a region-wide public information and education campaign. This campaign should be designed to explain the new Shari'ah governance framework to the general public in accessible terms. It should emphasize the Maqasid-based approach, focusing on how the new laws and institutions are designed to promote justice, social welfare, and the common good for all citizens, regardless of faith or background. This

proactive transparency is essential for building public trust and ensuring widespread buy-in for the new system.

Conclusion: Realizing the Vision of a Just and Balanced Bangsamoro Society

The Bangsamoro Organic Law provides a historic mandate not simply to govern, but to build a new social and legal order founded on the principles of justice, peace, and faith. The challenge of mainstreaming Shari'ah into the legislative framework of the BARMM is a complex undertaking, requiring a delicate balance between the unique aspirations of the Bangsamoro people and the constitutional realities of the Philippine state. It demands a vision that is both deeply rooted in Islamic tradition and forward-looking in its embrace of modern governance.

This report has argued that this vision is attainable through a systematic, principled, and institutionalized approach. The successful mainstreaming of Shari'ah does not lie in the piecemeal adoption of isolated rules, but in the construction of a comprehensive governance ecosystem. This ecosystem must be guided by the profound and humanistic philosophy of *Maqasid al-Shari'ah*, which prioritizes public welfare and the protection of fundamental human dignities. It must be operationalized through robust and transparent institutions—such as the proposed Shari'ah Legislative Review Board and Shari'ah Auditor-General—that ensure legislative quality, consistency, and accountability.

Furthermore, the application of Shari'ah in sensitive areas like penal law must be undertaken with wisdom and restraint, adhering strictly to the limits imposed by the BOL and embracing the compassionate, rehabilitative spirit of restorative justice. Enforcement mechanisms must be civilian-led, community-oriented, and subject to rigorous oversight to protect the rights and freedoms of all individuals.

The framework presented in this report—from the guiding philosophy of *Maqasid* to the practical tools of legislative review and the institutional designs for oversight and enforcement—offers a coherent and actionable path forward. It is a path that leverages proven models from global Islamic governance and adapts them to the specific legal and cultural context of the Bangsamoro. By investing in these institutions, building the capacity of its public servants, and engaging transparently with its people and its national partners, the Bangsamoro government can fulfill the promise of the BOL: to create a just, peaceful, and balanced society that is a source of pride for its people and a model of progressive autonomous governance for the world.

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